

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

OMNI LOGISTICS LLC, *et al.*,
RESPONDENTS.

**TPG PRESSURE INC.'S RESPONSE TO RESPONDENTS' PARTIAL MOTION TO
DISMISS FIRST AMENDED VERIFIED COMPLAINT FOR FAILURE TO STATE A
CLAIM UPON WHICH RELIEF CAN BE GRANTED**

Despite the Chief Administrative Law Judge's determination that Ocean Shipping Reform Act ("OSRA") does not apply retroactively, *see* February 24, 2023, CALJ Order at 4, Respondents chose to reintroduce this issue again, alleging that the vast majority of invoices were issued after the enactment of OSRA. In doing so, Respondents conveniently failed to mention that in the Respondent Epic Freight Solutions LLC's ("Epic") claim against Complainant TPG Pressure, Inc. ("TPG") in the Texas State court, in the matter *Epic Freight Solutions, LLC v. TPG Pressure Inc.*, Cause No. DC-22-17053 (191st District, TX) ("Texas Action")¹, the vast majority invoices at issue have been issued *after* the passage of OSRA. *See* Declaration of Gene M. Burd, Ex. 1. In its discovery requests served in the Texas Action, Epic included 58 invoices, 50 of which have been issued after the enactment of OSRA on June 16,

¹ The Texas Action has been dismissed without prejudice based on the applicable forum selection clause. *See* Burd Decl. ¶ []. It is expected that Epic will refile its claim in another forum.

2022. Clearly, there is a significant number of invoices issued by Respondents that are subject to OSRA.

As TPG explained in its Amended Complaint, the list of invoices submitted by TPG in this action was not exhaustive because Respondents are in possession, custody, and control of all invoices and relevant information, which TPG expects to obtain through discovery in this case. See Amended Complaint, ¶ 22. In fact, Epic included in its claims in the Texas Action an invoice dated as late as January 5, 2023, which is months after the enactment of OSRA. See Burd Decl. Ex. A. Moreover, as the Chief Administrative Law Judge has explained, the conduct identified by OSRA may be relevant to determining the reasonableness of rules and practices. Therefore, Respondent's Motion to Dismiss is premature and any decision should be deferred until a complete list of all invoices and other relevant factors at issue in this action are determined through discovery. *See IN RE: VEHICLE CARRIER SERVICES*, 1 F.M.C.2d 45, 2018 FMC LEXIS 40 (denying motion to dismiss to allow the complainant to develop the factual record in discovery).

Based on the foregoing, it is respectfully requested that the Respondents' Motion to Dismiss is denied.

Dated: April 7, 2023

Respectfully submitted,

FISHERBROYLES, LLP

By: /s/ Tiffany N. Compres

Tiffany N. Compres (Fl Bar. No. 78118)

1221 Brickell Avenue

Suite 900

Miami, Florida 33131

Tel: (305) 342.2957

tiffany.compres@fisherbroyles.com

Gene M. Burd (D.C. Bar No. 1004330)

1200 G Street NW Suite 800

Washington, DC 20005

Telephone: 202.750.0529

gene.burd@fisherbroyles.com

Counsel for Complainant TPG Pressure, Inc.

CERTIFICATE OF SERVICE

I certify that on April 7, 2023, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of December 6, 2022 as follows:

ATTORNEYS FOR RESPONDENTS:

**BENESCH, FRIEDLANDER,
COPLAN & ARONOFF LLP**

MARC S. BLUBAUGH (Ohio Bar No. 0068221)

mblubaugh@beneschlaw.com

NICHOLAS P. LACEY (Ohio Bar No. 0100042)

nlacey@beneschlaw.com

41 S. High Street. Suite 2600

Columbus, OH 43215

Telephone: (614) 223-9300

Facsimile: (614) 223-9330

4865-2474-3516, v. 1